

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kobi Bordoley	Team: Squad #03	CCRB Case #: 201609961	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 12/02/2016 3:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/2/2018	Precinct: 20		
Date/Time CV Reported Fri, 12/02/2016 4:30 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 12/02/2016 4:30 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Darrell Dass	10947	932522	020 PCT
2. POF Elise Banks	25101	934113	020 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Darrell Dass	Abuse: Police Officer Darrell Dass entered § 87(2)(b)	A . Exonerated
B . POF Elise Banks	Abuse: Police Officer Elise Banks entered § 87(2)(b)	B . Exonerated
C . POM Darrell Dass	Abuse: Police Officer Darrell Dass refused to provide his name and/or shield number to § 87(2)(b)	C . Substantiated
D . POF Elise Banks	Abuse: Police Officer Elise Banks refused to provide her name and/or shield number to § 87(2)(b)	D . Unfounded
E . POM Darrell Dass	Abuse: Police Officer Darrell Dass threatened to arrest § 87(2)(b)	E . Substantiated
F . POM Darrell Dass	Off. Language: Police Officer Darrell Dass made remarks to § 87(2)(b) based upon § 87(2)(b)'s perceived mental health.	F . Unsubstantiated

Case Summary

On December 2, 2016, § 87(2)(b) filed this complaint with the CCRB, via phone.

On December 2, 2016, at approximately 3:30 P.M., § 87(2)(b) called 911 to report a burglary at her residence, § 87(2)(b) § 87(2)(b), in Manhattan. PO Darrell Dass and PO Elise Banks, both of the 20th Precinct, arrived and entered § 87(2)(b)'s residence (**Allegations A and B**). § 87(2)(b) spoke to PO Dass about the burglary, of which PO Dass could find no evidence. PO Dass told § 87(2)(b) that he was not going to write a report for her, and was then told to leave by § 87(2)(b). As the officers began to leave, § 87(2)(b) asked PO Dass and PO Banks for their names. PO Dass and PO Banks ignored her request (**Allegations C and D**). § 87(2)(b) stepped toward PO Dass, and moved with her finger a pen in his pocket that was obscuring his nameplate. Upon doing this, PO Dass stepped back and allegedly told § 87(2)(b) "I could lock you up. I will lock you up so fast. Don't touch me" (**Allegation E**) and allegedly called § 87(2)(b) a "crazy lady" (**Allegation F**). PO Dass and PO § 87(2)(b) [§ 87(2)(b)] then exited the apartment. § 87(2)(b) was issued no summonses and was not arrested.

There was no video footage of this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected Mediation on December 7, 2016 § 87(2)(b).
- On January 20, 2017, a FOIL request to the Office of the Comptroller confirmed that § 87(2)(b) filed no Notices of Claim for this incident (02 Board Review).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB Complaint (04 Board Review).
- PO Dass has been a member of the NYPD for 13 years and has four other CCRB cases involving three allegations with no substantiated allegations. In CCRB# 200910885, a threat of arrest was alleged against PO Dass and exonerated. In CCRB# 201013327, a refusal to provide name and/or shield was alleged against PO Dass, but the complaint was withdrawn. In CCRB# 201100414, another threat of arrest was alleged against PO Dass, but the complainant was uncooperative. § 87(2)(g).
- PO Banks has been a member of the NYPD for 13 years and has three other CCRB cases involving three allegations with no substantiated allegations. § 87(2)(g), § 87(4-b) § 87(2)(g).

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Darrell Dass entered [§ 87(2)(b)]

Allegation B – Abuse of Authority: Police Officer Elise Banks entered [§ 87(2)(b)]

[§ 87(2)(b)] reported to the police, complaining about a burglary of her apartment, located at [§ 87(2)(b)], and PO Dass and PO Banks subsequently responded and entered her apartment to speak with her. During a follow-up call on December 15, 2016, [§ 87(2)(b)] explained that she invited both PO Dass and PO Banks inside as she wanted them to investigate the alleged burglary that had taken place at her apartment (05 Board Review).

PO Dass corroborated the fact that [§ 87(2)(b)] invited him and PO Banks into the apartment, as she wanted to discuss the alleged burglary that took place (06 Board Review).

“The police may lawfully conduct a warrantless search when they have obtained the voluntary consent of a party who possesses the requisite degree of authority and control over the premises or personal property in question.” *People v. Cosme*, 48 N.Y.2d (14 Board Review).

Consent is voluntary if it is the product of essentially free will. *People v. Gonzalez*, 46 A.D. 2d 882 (13 Board Review).

[§ 87(2)(g)]

[§ 87(2)(b)] it is recommended that **Allegation A** and **B** be *exonerated*.

Allegation C – Abuse of Authority: Police Officer Darrell Dass refused to provide his name and/or shield number to [§ 87(2)(b)]

[§ 87(2)(b)] explained to PO Dass about her belief that her apartment had been burglarized in her living room while PO Banks stood in the entryway. PO Dass told [§ 87(2)(b)] she had no proof of a robbery and thus he could not make a criminal report. [§ 87(2)(b)] tried to convince him to, but when he confirmed that he was not going to make a report for the alleged burglary, she told him and PO Banks to leave. As the officers were leaving, [§ 87(2)(b)] then asked PO Dass what his name was, and he did not respond. [§ 87(2)(b)] then asked PO Dass, “What’s your,” before turning to PO Banks and saying “Name?” PO Dass and PO Banks ignored her question again and continued to exit the apartment. [§ 87(2)(b)] stepped toward PO Dass and, using one finger, pushed one of the pens in his shirt pocket to the side so she could see the name on his nameplate, as the pens in his pocket obscured his name. PO Dass then moved away from [§ 87(2)(b)] and said, “Don’t touch me ever again. I could lock you up. I will lock you up so fast.” After making this threat of arrest, which will be discussed in more detail below, PO Dass and his partner exited the apartment. [§ 87(2)(b)] did not successfully learn PO Dass’ name before he left. (01 Board Review). [§ 87(2)(g)]

PO Banks did not recall if § 87(2)(b) ever asked PO Dass for his name. PO Banks recalled, however, that PO Dass said “Don’t touch me,” to § 87(2)(b). PO Banks did not see what happened, but speculated that § 87(2)(b) grabbed PO Dass. She did not talk to PO Dass about how § 87(2)(b) grabbed him any time after the incident. Additionally, PO Banks recalled that PO Dass keeps pens in his jacket pocket below his shield, but did not think that his pens would have obscured his nameplate (07 Board Review).

[illegible]

Allegation D – Abuse of Authority: Police Officer Elise Banks refused to provide her name and/or shield to § 87(2)(b)

CCRB – Confidential

PO Dass did not recall § 87(2)(b) ever speaking to PO Banks, as he believed that only he communicated with § 87(2)(b). PO Dass did not recall § 87(2)(b) ever asking PO Banks for her name (06 Board Review).

PO Banks recalled that § 87(2)(b) and PO Dass interacted with one another before they left the apartment, but she denied ever speaking to § 87(2)(b) herself. PO Banks did not recall § 87(2)(b) ever asking her for her name (07 Board Review).

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as *unfounded*.

Allegation E – Abuse of Authority: Police Officer Darrell Dass threatened to arrest § 87(2)(b)

§ 87(2)(b) said that after she attempted to move a pen that was obscuring PO Dass' nameplate, PO Dass stepped back from her and said, "I could lock you up. I will lock you up so fast. Don't touch me," before leaving the apartment with PO Banks. § 87(2)(b) said that the only physical contact she made with PO Dass was when she moved the pen in front of his nameplate with her finger (01 Board Review).

PO Dass said that on the way out of the apartment, § 87(2)(b) became angry and aggressive, and grabbed his shield and gripped it with all of her fingers. Upon doing this, PO Dass told her, to the best of his recollection, "Miss, I don't want to arrest you, you need to back up. You could be arrested for something like this. You're being aggressive," and then left the apartment with PO Banks. When asked if § 87(2)(b) was trying to move his pens to see his nameplate when she physically grabbed him, PO Dass said, "Probably." PO Dass said that § 87(2)(b) could have been arrested for the physical contact she made with him, and that she could have been arrested for Disorderly Conduct. PO Dass did not feel physically threatened by § 87(2)(b) and used his discretion to not arrest her, as he did not think she deserved to be arrested nor did her actions reach a level that would have necessitated arrest (06 Board Review).

PO Banks said that PO Dass said something similar to, "Don't touch me, because you can be arrested," to § 87(2)(b) although she did not see what actions § 87(2)(b) took to garner this response from PO Dass. However, she speculated that it may have been because § 87(2)(b) grabbed PO Dass (07 Board Review).

A person is guilty of Disorderly Conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, she engages in fighting or in tumultuous or threatening behavior. (Penal Law 240.20). (09 Board Review).

PO Banks recalled thinking that § 87(2)(b) was mentally unstable, but did not recall PO Dass mentioning § 87(2)(b)'s mental health. PO Banks did not hear PO Dass refer to § 87(2)(b) as “crazy” or a “crazy lady,” and did not hear § 87(2)(b) complain about any such language (07 Board Review).

§ 87(2)(g)

Therefore, it is recommended that **Allegation F** be closed as ***unsubstantiated***.

Squad: 3

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date